

SENATE No. 2715

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 19, 2025.

The committee on Municipalities and Regional Government to whom was referred the petition (accompanied by resolve, Senate, No. 1461) of Michael O. Moore that provisions be made for an investigation and study by a special commission (including members of the General Court) relative to the use and effectiveness of the zoning approval process of educational uses under the so-called Dover amendment, report the accompanying resolve (Senate, No. 2715).

For the committee,
Rebecca L. Rausch

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**In the One Hundred and Ninety-Fourth General Court
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Resolve establishing a special commission on the Dover amendment..

1 **Resolved**, there shall be a special commission to study the use and effectiveness of the
2 so-called Dover amendment, codified in section 3 of chapter 40A of the General Laws.

3 The commission shall consist of the secretary of housing and livable communities or a
4 designee, who shall serve as chair; the secretary of education or a designee; the secretary of
5 energy and environmental affairs or a designee; the senate and house chairs of the joint
6 committee on municipalities and regional government; the senate and house chairs of the joint
7 committee on housing; 2 members appointed by the president of the senate, 1 of whom shall
8 have expertise in zoning in suburban communities; 1 member appointed by the senate minority
9 leader; 2 members appointed by the speaker of the house of representatives, 1 of whom shall
10 have expertise in zoning in rural communities; 1 member appointed by the house minority
11 leader; 1 member appointed by the attorney general, who shall be an attorney with expertise in
12 zoning and municipal law; and 2 members appointed by the governor, 1 of whom shall be a
13 representative of a nonprofit school or higher education institution and 1 of whom shall be a
14 member of a nonprofit social services agency.

15 The commission shall study the impact and continued efficacy of the Dover amendment
16 on municipalities and stakeholders, including but not limited to the impact of the education
17 exemption on nonprofit education institutions, which shall include a review of the types of
18 building projects sited under the protection of the Dover amendment and the case law decided on
19 the educational exemption. The commission shall solicit public testimony, either by holding
20 public hearings or through surveys.

21 The commission shall file the results of its study together with recommendations for
22 legislation, which shall include a proposed definition of “educational purposes”, with the clerks
23 of the house of representatives and senate, on or before January 1, 2028.